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Plaintiff, In Pro Per

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

Franciscus Dylan Rosario,
PLAINTIFF,

v.

Subhi Abdelhalim;
CSAA Insurance Exchange;
PHILLIPS, SPALLAS & ANGSTADT LLP;
PRIYA D. NAVARATNASINGHAM;
ALBERTO REYNA;
MICHAEL R. CHAMBERS;
CARBONE, SMITH & KOYAMA;
and DOES 1 through 50, inclusive;

DEFENDANTS

Case No.: CGC-25-631801

JUDICIAL ADMISSION MATRIX

JUDICIAL ADMISSION MATRIX — POSITION A / POSITION B

Purpose: Freestanding exhibit for Plaintiff's oppositions to demurrer and anti-SLAPP motions. This matrix pairs **Position A** (suppression / denial / unknown framing) with **Position B** (possession, transmission, or Dolan-origin admissions) on the certified hearing and trial transcripts. **Tribunal acceptance** notes where the Court accepted Position A for purposes of estoppel analysis. Citations align with the Second Amended Complaint (801-DEFENSE-COURT/SAC/00002.md) Exhibit Appendix K-Q.

Guardrail: Trial-day rows are offered as **judicial estoppel, scienter, or reliance-channel** evidence consistent with SAC Paragraphs 14, 102, 106, and 107, not as substitutes for the pleaded injury-producing acts.

0. THE COURT'S ARTICULATED RELIANCE

This Matrix documents the sequence of misrepresentations that induced the Court's reliance and resulted in the gutting of Plaintiff's case.

- **1. THE RELIANCE:** "I'm not going to question a lawyer's remarks regarding what they have and don't have. They are an officer of the Court, and they are supposed to conduct themselves appropriately before the Court. If they are not, there are other sanctions that they could suffer here. So far I haven't heard or seen anything on the part of the current law firm which tells me that they have conducted themselves improperly." (Hr'g Tr. Feb. 28, 2025, pp. 291:26–292:7.)
 - **2. THE ADMISSION:** "Sure. They were provided by Dolan. He has had them for whatever, sure." (RT 7, Apr 16, 2025, p. 213, ll. 13–15.)
 - **3. THE AUDACITY:** Defense counsel denied receipt eighteen (18) times across four hearings while in possession of nine (9) independent artifacts proving receipt.
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MASTER RECORD (POSITION A / POSITION B)

1. **Jan. 27, 2025 — Navaratnasingham. Position A:** "completely lacks foundation; not authenticated. We have no idea... We have not heard any recordings from our client." (p. 19, ll. 7–13); "we never received these CDs, certainly" (p. 34, ll. 1–10). **Position B:** (Apr. 16, 2025 admission confirms possession). **Ruling procured:** MIL exclusion of 911 CDs (p. 38); transcripts "never admitted" (p. 39). **Record cite:** Hr'g Tr. Jan. 27, 2025.
2. **Feb. 18, 2025 — Navaratnasingham. Position A:** "did not receive... this is news to me" (p. 141). **Position B:** "all this stuff has been in his possession since August" (p. 181); 2021 Dolan copy (p. 139). **Ruling procured:** Continuance denied; § 473 surprise rejected (p. 181). **Record cite:** Hr'g Tr. Feb. 18, 2025.

3. **Feb. 28, 2025 — Defense / Court. Position A:** (Implied denial leading to officer-of-court reliance). **Position B:** —. **Ruling procured:** Burden-shift imposed on Plaintiff to disprove non-receipt (p. 293). **Record cite:** Hr’g Tr. Feb. 28, 2025.
4. **Apr. 16, 2025 — Navaratnasingham. Position A:** RT 7 stacked denials (pp. 156, 162): “not anything we received as part of the subpoena.” **Position B:** “They were provided by Dolan.” (RT 7, p. 213, ll. 13–15). **Ruling procured:** Supp. report excluded; 911 admission deferred. **Record cite:** RT 7, pp. 156, 162, 213.
5. **Apr. 17, 2025 — Abdelhalim. Position A:** Prior “unknown” provenance channel. **Position B:** “Yes. That is my voice.” (p. 108). **Ruling procured:** Jury hears 911 for first time after prejudice already done. **Record cite:** RT 8, p. 108.
6. **Apr. 22, 2025 — Defense closing. Position A:** “Changed his story to avoid a Vehicle Code violation” (jury argument). **Position B:** Payoff tied to Feb. 18 / trial-day contradiction record. **Ruling procured:** Jury deliberation context. **Record cite:** RT 10, pp. 49–52 (Exhibit Q).

PLAINTIFF PRESERVATION OF SUPPRESSION THEME

These entries document Plaintiff’s contemporaneous preservation alongside the Position-A / Position-B record — the single-page answer to any “Plaintiff did not preserve” argument.

- **Jan. 27, 2025 — Plaintiff preservation:** “trying to suppress” (p. 19); “cherry-pick” / “weaponization” (p. 17, 42); FROG/SROG pin-cited (p. 32). **Court ruling:** CCP § 473 denied; continuance denied; MIL 1 granted. **Pincite:** Hr’g Tr. Jan. 27, 2025, pp. 17, 19, 32, 42, 49, 55.
- **Jan. 28, 2025 — Plaintiff preservation:** (Absent — medical ER at Santa Clara Valley MC.) **Court ruling:** § 581(d) opposed by Court (“immediate reversal”). **Pincite:** Hr’g Tr. Jan. 28, 2025, p. 90.
- **Feb. 3, 2025 — Plaintiff preservation:** (Absent — medical.) **Court ruling:** § 581(d) under submission; ex parte disclosure order. **Pincite:** Hr’g Tr. Feb. 3, 2025, pp. 109, 116, 122–124.
- **Feb. 18, 2025 — Plaintiff preservation:** “concealed” (p. 17); “stonewalling” (p. 23); “smoking gun / murder weapon” (?); “going on the record” (pp. 44–45). **Court ruling:** Continuance denied; § 473 surprise rejected. **Pincite:** Hr’g Tr. Feb. 18, 2025, pp. 17, 23, 44–45, 181.

- **Feb. 28, 2025 — Plaintiff preservation:** Opposed deposition protective order; preserved officer-of-court / burden-shift objection. **Court ruling:** Protective order denied but fees on Plaintiff; burden-shift ruling at pp. 291–294. **Pincite:** Hr’g Tr. Feb. 28, 2025, pp. 291–294.
- **Apr. 22, 2025 — Plaintiff preservation:** “former attorney concealed the 911 record” (closing). **Court ruling:** Closing argument; verdict. **Pincite:** RT 10, p. 55.

Summary: Plaintiff preserved the suppression / concealment theme on **four separate pre-trial hearing dates** (Jan. 27, Feb. 3, Feb. 18, Feb. 28), each time seeking a procedural remedy (continuance, § 473, protective-order opposition). Each procedural vehicle was denied. This chronology defeats any “sleeping on rights” or “intrinsic fraud because Plaintiff was aware” argument: Plaintiff was aware **because he preserved his objection**, but his procedural remedies were foreclosed.

DATED: April 16, 2026

FRANCISCUS DYLAN ROSARIO,